IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

COMPANY APPLICATION CA. (CAA) – 29(ND)/2025

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w Rule 3 and 5 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF ARRANGEMENT

BETWEEN

AMP MOTORS PRIVATE LIMITED

Having Registered Office at:

2686, Kashmiri Gate, New Delhi-110006.

CIN: U34103DL2009PTC195418

PAN: AAICA0034F

Email: rasile@ampmotors.in

Mobile No. +91-9716406207

..... Applicant Company No.1/Demerged Company

AND

AMP INFRATECH PRIVATE LIMITED

Having Registered Office at:

2686, Kashmere Gate, New Delhi 110006

CIN: U70109DL2012PTC231927

PAN: AAKCA8937B

Email: accounts4@ampmotors.in

Mobile No. +91-9716406207

..... Applicant Company No.2/Resulting Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 30.06.2025

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Adv. Afraan Siddiqui, Adv. Visakha Raghuram, Adv. Armaan Siddiqui

ORDER

PER: DR. SANJEEV RANJAN, MEMBER (TECHNICAL)

1. This is a 1st Motion Application jointly filed under Sections 230 and 232 of the Companies Act, 2013 read with Rules 3 and 5 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016, and other applicable provisions, before this Tribunal seeking direction for dispensing with the requirement of convening meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the AMP Motors Private Limited ("Demerged Company"/"Applicant Company 1") and AMP Infratech Private Limited ("Resulting Company/Resultant Company/ Applicant Company 2") and for considering and if thought fit approving the Scheme of Arrangement for Demerger of Real Estate Division ("Demerged Undertaking") of **AMP Motors Private Limited** ("**Demerged Company**") into **AMP Infratech Private Limited** ("**Resulting Company/Resultant Company/ Applicant Company 2**") and their respective shareholders and creditors (hereinafter may be referred to as the "**Scheme**").

2. The Ld. Counsel for the Applicant has given the brief description of the Applicant Companies, which are as follows:

a) The Applicant No. 1/Demerged Company namely AMP MOTORS PRIVATE LIMITED bearing CIN: U34103DL2009PTC195418 was incorporated on October 22, 2009 as a Private Limited company under the provisions of the Companies Act, 1956 having its registered office at 2686 Kashmiri Gate, New Delhi- 110006. The Authorized Share Capital of the Demerged Company as on 31.01.2025 was Rs. 7,50,00,000/- divided into 75,00,000 Equity Shares of Rs. 10/- each. The Issued, Subscribed and Paid-up share capital of the Demerged Company as on 31.01.2025 was Rs. 4,91,49,760 divided into 4,91,49,760 Equity Shares of Rs. 10/- each.

b) The Applicant No. 2/Resulting Company namely AMP Infratech Private Limited bearing CIN: U70109DL2012PTC231927 was incorporated on February 23, 2012 as a Private Limited company under the provisions of the Companies Act, 1956 having its registered office at 2686, Kashmere Gate, New Delhi- 110006, India. Subsequently, the name of the Resulting Company/ Resultant Company was changed on April 22, 2013. The Authorized Share Capital of the Resulting Company as on 31.01.2025 is Rs. 1,00,000 divided into 10,000 Equity Shares of Rs.10 each. The present Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each.

3. The Affidavits in support of the present application have been sworn by Mr. Yogendra Popli, son of Mr. Tek Chand Popli, the Authorised Representative/Signatory of Applicant No. 1/Demerged Company and by Mr. Rinku Rohilla, son of Mr. Manoj Kumar, the Authorised Representative /Signatory of Applicant No. 2/Resulting Company.

4. The Board of Directors of all the Applicant Companies in their respective meeting held on 04 February, 2025 considered and unanimously approved the proposed Scheme of Arrangement. Copies of the Board Resolutions have been enclosed with the 1st motion joint application being filed with this Tribunal.

5. The Applicant Companies have filed their Memorandum and Articles of Association inter alia delineating their object clauses as well as the latest audited annual financial report for the year ended 31.03.2024. Copy of the respective provisional un-audited financial statements as on 31.01.2025 have been filed by Applicant Companies No.1 and 2 as required under section 232(2)(e) of the Companies Act, 2013.

6. The Applicant Companies have filed the true copy of the proposed Scheme of Demerger, the benefits of which are as follows:

"a. Streamlining the operating structure and achieving operational efficiencies.

b. The management believes that the proposed demerger will allow the Demerged Company to strengthen its core competencies resulting in creating enhanced value for shareholders and will also allow a focused strategy and specialization for sustained growth.

c. The nature of risk and return involved in the business of "Real Estate Division" is distinct from the "Business Division". Hence, the Transfer of "Real Estate Division" would enable both divisions to run and operate independently enabling synchronized planning, better coordination, cohesiveness and assistance in standardization of business processes which will attract potential collaborators for the future growth and development of business by both the Resulting Company/ Resultant Company/Applicant Company 2 as well as the Demerged Company.

d. The said transfer of "Real Estate Division" would provide greater flexibility and visibility on the operational and financial performance of both the divisions and would provide higher degree of independence as well as accountability.

e. The proposed demerger will result in segregation of the business verticals which shall enable the Demerged Company and the Resulting Company/ Resultant Company/Applicant Company No. 2 to move forward independently, with specialization building on their respective capabilities.

f. The proposed demerger would attain more beneficial results for the shareholders, and creditors of the Companies, and will not prejudice the interests of any concerned member/creditor or general public at large.

g. The demerger will enable the Demerged Company and the Resulting Company/Resultant Company/Applicant Company 2 to focus and enhance their respective management structure ensuring better and more efficient management control."

7. It is submitted that the material provisions of the proposed Scheme are as under:

With effect from the Appointed Date and upon the Scheme becoming effective, the Demerged Undertaking shall stand transferred to and vested in or deemed to be transferred to and vested in the Resulting Company/Resultant Company/ Applicant Company 2, as a going concern, in accordance with Section 2(19AA) of the Income-tax Act, 1961 and in the manner as follows:

"a. Transfer of Movable Assets: In respect of such of the assets of the Real Estate Division which are movable in nature or are othe1wise capable of transfer by manual delivery, they shall be physically handed over by manual delivery or endorsement and delivery, and the same may be so transferred by the Demerged Company, without requiring any deed or instrument of conveyance for the same and shall become the property of the Resulting Company/Resultant Company/Applicant Company No.2 to the end and intent that the ownership and property therein passes to the Resulting Company/ Resultant Company/ Applicant Company No.2 on such handing over in pursuance of the provisions of Section 232 of the Companies Act 2013.

b. Transfer of Other Assets: In respect of such of the assets of the Real Estate Division other than those referred above, the same shall, without any further act, instrument or deed, be transferred by the Demerged Company to and stand vested in and I or be deemed to be transferred to and stand vested in the Resulting Company/ Resultant Company/ Applicant Company 2 pursuant to the provisions of Section 232 of the Act.

c. In relation to the assets belonging to the Real Estate Division, which require separate documents of transfer, the parties will execute necessary documents, as and when required.

d. The transfer and vesting of all assets of the Real Estate Division, as aforesaid, shall be subject to the existing charges, mortgages and encumbrances, if any, over or in respect of any of the assets or any part thereof, provided however that such charges, mortgages and/or encumbrances shall be confirmed only to the relative assets of the Real Estate Division or part thereof on or over which they are subsisting on transfer to and vesting of such assets in the Resulting Company/ Resultant Company/Applicant Company No. 2 and no such charges, mortgages, and/or encumbrances shall be enlarged or extend over or apply to any other asset(s) of the Resulting Company/ Resultant Company/Applicant Company No. 2. Any reference in any security documents or arrangements (to which the Demerged Company is a party) to any assets of the Real Estate Division shall be so construed to the end and intent that such security shall not extend, nor be deemed to extend, to any of the other asset(s) of the Resulting Company/ Resultant Company/Applicant Company No. 2 and the Resulting Company/ Resultant Company Applicant Company No. 2 shall not be obliged to create any further or additional security thereof

e. Transfer of Liabilities: In respect of the identified debts, liabilities, duties and obligations of the Real Estate Division, it is hereby clarified that it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, duties and obligations have arisen.

f. For the purpose of giving effect to the order passed under Sections 230 to 232 in respect of this Scheme, the Resulting Company/Resultant Company/Applicant Company No. 2 shall at any time pursuant to the orders be entitled to get the

record of the change in the title and appurtenant legal right(s) upon the vesting of such assets of the Real Estate Division in the Resulting Company/Resultant Company /Applicant Company No. 2.

g. *Where any of the liabilities and obligations attributed to the Real Estate Division on the Appointed Date has been discharged by the Demerged Company on behalf of the Real Estate Division after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on behalf of the Resulting Company/Resultant Company/ Applicant Company No. 2.*

h. *Transfer of Contracts: All contracts, deeds, bonds, agreements, arrangements, incentives, licenses, engagements, approvals and registrations and other instruments of whatsoever nature in connection with or pertaining to or relatable to the Real Estate Division to which the Demerged Company is a party or to the benefit of which the Demerged Company may be eligible, and which have not lapsed and are subsisting on the Effective Date, shall remain in full force and effect against or in favour of the Resulting Company/Resultant Company/Applicant Company No. 2 as the case may be, and may be enforced by or against the Resulting Company/Resultant Company/Applicant Company No. 2 as fully and effectually as if, instead of the Demerged Company, the Resulting Company/ Resultant Company/Applicant Company No. 2 had been a party or beneficiary thereto.*

i. *Treatment of Employees: All the employees of the Real Estate Division and such other employees as identified by the Board of Directors of the Demerged Company, in service on the Effective Date shall, on and from the Effective Date, become the employees of the Resulting Company/ Resultant*

Company/Applicant Company No. 2 on terms and conditions not less favourable as applicable to them on the Effective Date.

j. Treatment of Taxes: Resulting Company/Resultant Company/ Applicant Company 2 shall be entitled to carry forward, avail of, or set-off any unabsorbed tax losses, unabsorbed tax depreciation, Credit of minimum alternative tax, and input tax credits of Real Estate Division of Demerged Company that remain unutilized as on Appointed Date, as per the provisions of the Income Tax Act and to the extent permitted under Income Tax Act.

k. Conduct of business: With effect from the Appointed Date and until occurrence of the Effective Date, the Demerged Company shall be deemed to carry on all their businesses and activities and stand possessed of the properties and assets for and on account of and in trust for the Real Estate Division of Resulting Company/Resultant Company/ Applicant Company.

8. In the present application, a separate disclosure affidavit under section 230(2) of the Companies Act 2013 is also filed to show that no investigation or proceeding under the Companies Act, 2013 or under the erstwhile Companies Act, 1956 is pending neither against the Demerged Company nor Resulting Company involved in the present Scheme of Demerger.

9. Upon coming into effect of this Scheme and upon transfer and vesting of the Demerged Undertaking of the Demerged Company in the Resulting Company/Resultant Company/Applicant Company 2, the consideration in respect of such transfer by Demerged Company shall, subject to the provisions of the Scheme, be paid and satisfied by Resulting Company/ Resultant Company/ Applicant Company 2 as follows:

a. Resulting Company/ Resultant Company/Applicant Company shall, without further application, act or deed, shall issue and allot to each of the Equity Shareholders of the Demerged Company (other than shares already held therein immediately before the demerger by the Resulting Company/Resultant Company/Applicant Company No. 2, its nominee or subsidiary company), shares in proportion of 15 (Fifteen) fully paid-up equity shares of face value of Rs. 10/- each in Resulting Company/ Resultant Company/Applicant Company 2 for every 1(one) fully paid-up equity shares of Rs 10 (Rupees Ten) each held by such Equity Shareholders in the Demerged Company as on the Record Date.

b. The issuance of fully paid-up equity shares to the shareholders of the Demerged Company in terms of Clause 19 of the Scheme is based on the Share Entitlement Ratio, approved by the Boards of Directors of Resulting Company/ Resultant Company and the Demerged Company, based on their independent judgment and after taking into consideration the certificate of share entitlement ratio provided by Mr. Manish Chandra, Registered Valuer (IBBI/RV/05/2019/10903) based on valuation report of Applicant Company provided by Mr. Manish Chandra, Registered Valuer and valuation report of Resulting Company/ Resultant Company provided by Mr. Manish Chandra, Registered Valuer. The Board of Directors of Demerged Company and Resulting Company/ Resultant Company, after considering the expert advice as well as conducting their own independent evaluation and judgment, have concluded that the Share Entitlement Ratio derived from the respective valuation reports of the Applicant Companies is fair and reasonable.

c. Any fraction arising out of the allotment of equity shares shall be rounded off to the nearest number."

10. Upon the coming into effect of the Scheme of Arrangement for Demerger, there will be no change in the Authorized Share Capital of the Demerged Company, the Resulting Company/Resultant Company/Applicant Company 2 shall increase its Authorized Share Capital for allotment of equity shares pursuant to the Scheme. Since, there is no cross holding between the Demerged Company or Resulting Company/Resultant Company/Applicant Company No.2, none of the equity shares shall be cancelled. Accordingly, there will be no reduction of share capital pursuant to cross holding. Further, present Scheme does not envisage any reduction of capital as per Section 66 of the Companies Act, 2013.

11. As on January 31, 2025, there are 03 (Three) Equity Shareholders in the Demerged Company. The Demerged Company circulated a copy of the Scheme to its equity shareholders and all the Equity Shareholders of the Demerged Company holding 100% Equity Shares have given their consent in writing by way of affidavit to the Scheme. The list of Equity Shareholders of the Demerged Company as on January 31, 2025 their 'No Objection by way of affidavit' are annexed with the present application.

12. As on January 31, 2025, there are 3 (Three) Secured Creditor in the Demerged Company amounting to Rs. 52,01,15,523.11 (Rupees Fifty Two Crore One Lakh Fifteen Thousand Five Hundred Twenty Three and Eleven Paise Only). The Demerged Company circulated a copy of the Scheme to its Secured Creditors and the Secured Creditors of the Demerged Company comprising 93.1% of the total secured debt have given their consent in writing by way of affidavit to the Scheme and for dispensation of the meeting of the Secured Creditors for approving the Scheme. The list of Secured Creditors of the Demerged Company as on January 31, 2025 along with certificate issued by the Chartered Accountant and the 'No Objection by way of affidavit' of the Secured Creditors are annexed with the present application.

13. As on January 31, 2025, there are 89 (Eighty Nine) Unsecured Creditors in the Demerged Company amounting to Rs. 1,73,11,019.89 (Rupees One Crore Seventy Three Lakhs Eleven Thousand Nineteen and Eight Nine Paise Only). The Demerged Company circulated a copy of the Scheme to its Unsecured Creditors and the Unsecured Creditors of the Demerged Company comprising 90.83% of the total unsecured debt have given their consent in writing by way of affidavit to the Scheme and for dispensation of the meeting of the Unsecured Creditors for approving the Scheme. The list of Unsecured Creditors of the Demerged Company as on January 31, 2025 along with certificate issued by the Chartered Accountant and the 'No Objection by way of affidavit' of the Unsecured Creditors are annexed with the present application.

14. As on January 31, 2025, there are 02 (Two) Equity Shareholders in the Resulting Company/Resultant Company/Applicant Company No. 2. The Resulting Company/Resultant Company/Applicant Company No. 2 circulated a copy of the Scheme to its Equity Shareholders and all the Equity Shareholders of the Resulting Company/ Resultant Company/ Applicant Company 2 holding 100% equity shares have given their consent in writing by way of affidavit to the Scheme. The list of Equity Shareholders of the Resulting Company/Resultant Company/ Applicant Company 2 as on January 31, 2025, and their 'No Objection byway of affidavit' are annexed with the present application.

15. As on January 31, 2025, there are Nil Secured Creditors in the Resulting Company/ Resultant Company/Applicant Company No. 2. In view thereof, the requirement of obtaining the consents of the Secured Creditors does not arise.

16. As on January 31, 2025, there are 1 (One) Unsecured Creditors in the Resulting Company/Resultant Company/Applicant Company No. 2 amounting to Rs 7,49,951 (Rupees Seven Lakh Forty Nine Thousand Nine Hundred Fifty One Only). The Resulting Company/ Resultant Company/

Applicant Company No. 2 circulated a copy of the Scheme to its sole Unsecured Creditor and the sole Unsecured Creditor of the Resulting Company/ Resultant Company/Applicant Company No.2 comprising 100% of the total unsecured debt have given their consent in writing by way of affidavit to the Scheme and for dispensation of the meeting of the Unsecured Creditors for approving the Scheme. The list of Unsecured Creditors of the Resulting Company/ Resultant Company/ Applicant Company 2 as on January 31, 2025 along with certificate issued by the Chartered Accountant issued by the Chartered Accountant and their 'No Objection by way of affidavit are annexed with the present application.

17. The Status of the Shareholders, Secured Creditors and Un-secured Creditors of the Applicant Companies and Consent Affidavits obtained for the proposed Scheme is summarized in following tables: -

AMP MOTORS PRIVATE LIMITED (DEMERGED COMPANY)					
S. No	**Particulars**	**Total (In No.)**	**Consent Obtained (In No.)-**	**%Age(In Value)**	**Page No.**
1.	Equity shareholders	03	03	100%	122-137
2.	Secured creditors	03	01	93.1%	139-143
3.	Unsecured creditors	89	50	90.83%	144-427

AMP INFRATECH PRIVATE LIMITED (RESULTING COMPANY/ RESULTANT COMPANY/ APPLICANT COMPANY 2)					
S. No	**Particulars**	**Total (In No.)**	**Consent Obtained (In No.)-**	**%Age(In Value)**	**Page No.**
1.	Equity shareholders	02	02	100%	518-528
2.	Secured creditors	Nil	Nil	Nil	530-531
3.	Unsecured creditors	1	1	100%	532-538

18. It is submitted that the present Scheme of Arrangement for Demerger does not involve corporate debt restructuring as per Section 230 (2)(c) of the Companies Act, 2013. The affidavits of the respective Applicant Companies in this regard are annexed with the present application.

19. It is submitted that none of the Applicant Companies fall within the ambit of any sector specific regulator. Hence, no notice is required to be issued to any Sectoral Regulator under section 230(5) of the Companies Act, 2013.

20. It is submitted that No Objection Certificate of Competition Commission of India (CCI) is not required in the present case as the present Scheme of Arrangement for Demerger is exempted from giving notice to the CCI.

21. Having heard the submissions made by Ld. Counsel and records as well as the documents placed on record, we allow the following prayers:

"a. To allow the present application;

b. To Pass an order issuing directions for dispensing the requirement of calling meeting of Equity Shareholders of the Demerged Company/Applicant Company No.1;

c. To Pass an order issuing directions for dispensing with the requirement of calling meeting of Secured Creditors of the Demerged Company/Applicant Company No.1;

d. To Pass an order issuing directions for dispensing with the requirement of calling meeting of Unsecured Creditors of the Demerged Company/Applicant Company No.1;

e. To Pass an order issuing directions for dispensing with the requirement of calling meeting of Equity Shareholders of the Resulting Company/Resultant Company/Applicant Company No. 2;

f. To Pass an order issuing directions for dispensing with the requirement of calling meeting of Secured Creditors of the Resulting Company/Resultant Company/Applicant Company No.2;

g. To Pass an order issuing directions for dispensing with the requirement of calling meeting of Unsecured Creditors of the Resulting Company/Resultant Company/Applicant Company No. 2;

h. To Pass an order that notice shall be issued in accordance with the provisions of Section 230 (5) of the Companies Act, 2013 to following authorities:- Registrar of Companies (NCT of New Delhi and Haryana); Regional Director (Northern Region); and Income Tax Department (to the respective wards of applicant companies).”

22. The prayers sought in the present application bearing **CA.CAA-29(ND)/2025** stands **allowed** on the aforesaid term and the present application is accordingly **disposed of**.

23. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

Let copy of the order be served to all the parties.

Sd/-
(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)